India and Pakistan to the brink of war, with fingers on the nuclear trigger. Nearly 10,000 crore rupees were spent and 800 soldiers died in the war effort. Reportedly, over 100 children died and many farmers lost their livelihood due to heavy mining in the border areas. ‘After the unfortunate incident,’ the high court observed, ‘the clouds of war with our neighbour loomed large for a long period of time . . . the nation suffered not only an economic strain, but even the trauma of an imminent war.’[4]

The Supreme Court has now set aside Mohammad Afzal’s confessional statement with the following words: ‘All these lapses and violations of procedural safeguards guaranteed in the statute itself impel us to hold that it is not safe to act on the alleged confessional statement of Afzal and place reliance on this item of evidence on which the prosecution places heavy reliance.’[5]

With the confession set aside, the story of a conspiracy linking the ISI, Masood Azhar, Jaish-e- Mohammad, Lashkar-e-Toiba, Ghazi Baba, Tariq and the rest disappears from the judgement of the court. All we’ve gathered—all that the court judgement tells us— is that five heavily armed men with rather commonplace names attacked our Parliament—and were all killed— and that Mohammad Afzal participated in the conspiracy. This, after five years, is all that we know about the 13 December attack. The entire media has failed to mention this single, enormous fact.

The Supreme Court’s rejection of the confession had two parts. In the first, it mentioned a series of objections raised by the defence which the court found ‘plausible and persuasive’.[6] However, the court held that ‘it is not necessary to rest our conclusion on these probabilities’[7], since, in the second part, the court found some direct reasons to set aside the confession. The investigating agency, namely, the Special Cell of the Delhi police, violated even the minimal safeguards sanctioned under the otherwise draconian POTA. These included the denial of legal assistance to the accused after POTA was introduced in the case, failure to inform any relative, taking the accused back into police custody after the confession, and failure to give the confessor sufficient time to reflect before the confession. (The high court had observed earlier that Afzal’s arrest memo was signed by Geelani’s brother Bismillah while the latter was himself in ‘illegal confinement’[8], and was forced to ‘sign papers’.) According to the court, these violations themselves have a ‘bearing on the voluntariness of confession’.